

25STCV32279 25STCV32279

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Case Number: 25STCV32279 Hearing Date: August 12, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

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DEPARTMENT 14

SAMUEL MOORE and MARVA MOORE,

Plaintiff,

v.

3M COMPANY, et al.

Defendants.

Case No. 25STCV32279

Hearing Date: August 12, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

AURORA PUMP COMPANY'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On November 4, 2025, Plaintiffs Samuel and Marva Moore filed his complaint for personal injury alleging he developed mesothelioma after direct exposure to asbestos-containing products from his work as a welder on various ships in the 1960s and 1970s.

On June

12, 2026, Defendant Aurora Pump Company ("Aurora" or "Defendant") moved for summary judgment or adjudication, arguing that Plaintiffs lack and cannot reasonably obtain admissible evidence that Plaintiff was exposed to asbestos by an Aurora asbestos-containing product.

On July

23, 2026, Plaintiffs opposed, arguing that Aurora failed to meet its moving burden because their discovery responses contained sufficient facts to support their claims against it. Plaintiffs also argue that their evidence is sufficient to establish that Mr. Moore was exposed to asbestos-containing Aurora products.

On July

31, 2026, Aurora replied, arguing that it met its initial burden and that Plaintiffs' evidence fails to raise a triable issue of material fact over whether Mr. Moore worked on or around an asbestos-containing Aurora product.

Aurora meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Moore was exposed to an asbestos-containing Aurora product. Plaintiffs meet their burden to submit affirmative evidence supporting their claims against Aurora. Aurora's motion for summary judgment is denied.

Aurora also meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence that it knew of the health risks posed by its asbestos-containing components and continued selling them without warnings. Plaintiffs failed to present affirmative evidence supporting their demand for punitive damages. Aurora's motion for summary adjudication of the demand for punitive damages is granted.

Aurora to give notice.

II.

Evidentiary Objections

Aurora's Objections

Exhibit A –

Excerpts of direct and re-direct examination of Plaintiff's deposition testimony from Volume I and Volume VI cited to by Plaintiffs in their Opposition, Separate Statement in Opposition to Defendant's Motion, and Reply to Defendant's Separate Statement. Aurora objects to various excerpts from Mr. Moore's deposition on the grounds that they lack foundation, lack personal knowledge, and are speculative. Specifically, Aurora objects to Exhibit A at 29:3-11, 70:9-71:2, 71:19-24, 74:25-75:11, 81:19-23, 84:5-8, 84:17-20, 84:24-85:11, 85:19-86:2, and 86:15-19 on the grounds that the "testimony that consists of agreement with a suggested proposition." (Aurora's objection to Exhibit A.) The court has reviewed each excerpt and finds that Mr. Moore's testimony is not speculative or lacking in foundation or personal knowledge. Although Plaintiffs' counsel asked Mr. Moore yes or no questions, the questions asked Mr. Moore about the process of cleaning pipe flanges and whether he was around other people servicing Aurora pumps. Mr. Moore performed maintenance on Aurora pumps and thus has the personal knowledge to respond to questions about the work he performed on the pumps. The objections to Exhibit A are overruled.

Exhibit E – Jimmy

Leroy Franklin's deposition testimony taken on 2/14/12 in the Millard Fillmore Jackson, et al. v. Alfa Laval, Inc., et al. case.

Aurora represents that the parties agreed that Aurora would not object to the admissibility of this deposition transcript based on Evidence Code section 1291 and 1292.

Aurora objects to Exhibit

E at 46:18-24 on the grounds that Mr. Franklin's testimony about events from between 1967 and 1977 are irrelevant because Mr. Moore only welded in shipyards until 1977. The testimony objected to is Mr. Franklin's testimony about whether Aurora sold renewal parts to the Navy in the 50s and 60s. The information is relevant to whether Aurora parts were present at Mr. Moore's worksite because Mr. Moore was a welder for navy ships in the 60s. The objection is overruled.

Aurora objects to Exhibit

E at 60:13-18 on the grounds that the testimony is hearsay because Mr. Franklin did not begin working for Aurora until 1979 and does not have personal knowledge to answer questions about events which took place before 1980. However, Aurora makes this statement without evidentiary support. There is no evidence in the moving papers or the opposition that Mr. Franklin began working for Aurora in 1979. Accordingly, there is no support for Aurora's contention that Mr. Franklin has no personal knowledge of events from before 1980. Even if there was evidence that Mr. Franklin began working at Aurora in 1979, Mr. Franklin was asked whether it was "standard or typical in the industry" for an asbestos-containing gasket to be used on pipe flanges. (Pearce Decl., Exh. E at 60:13-18.) The question is not specific to Aurora but asks about industry standards. Thus, even if he did not begin working at Aurora until 1979, Mr. Franklin would have personal knowledge to answer questions about industry standards before 1984. The objection is overruled. Aurora's objection to Exhibit E at 50:12-18 is overruled for the same reasons.

Aurora objects to Exhibit

E at 50:19-24 on the grounds that the testimony is irrelevant because Mr. Moore never assembled pumps and was never an Aurora employee. The testimony is relevant to whether there were asbestos-containing gaskets in the new Aurora pumps Mr. Moore worked with because evidence that employees assembled new pumps with asbestos-containing components would support an inference that the new pumps Mr. Moore worked with included asbestos-containing components.

Aurora objects to Exhibit

E at 89:11-14, 89:19-20, 89:19-20, 89:25-90:6, 90:14-18, 90:24-91:1, 91:5-7, and 91:14-16 on the grounds that it is speculation, lacks foundation, assumes facts, and seeks an expert opinion. Pages 89 and 90 of the transcript was omitted from Plaintiffs' Exhibit E. As for page 91, Aurora fails to explain why Mr. Franklin's testimony that Aurora never warned employees or members of the navy about the dangers of asbestos in their pumps lacks foundation. The

testimony does not assume facts or seek an expert opinion. The objections are overruled.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v.

Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.)

Where a

plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence "defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it..." (Turley v. Familian Corp. (2017) 18

Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31

Cal.App.4th at p. 1420.].) Where a defendant manufactures similar

products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (See Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

California

law generally does not hold a manufacturer of a product liable for replacement asbestos-containing subcomponents supplied by another manufacturer. California accepts the "bare metal defense" such that manufacturers of a product are not generally liable for design defect or failure to warn when asbestos-containing sub-components it did not manufacture or supply are incorporated into its product. (O'Neil v. Crane Co. (2012) 53 Cal.4th 335, 362 ["We reaffirm that a product manufacturer generally may not be held strictly liable for harm caused by another manufacturer's product. The only exceptions to this rule arise when the defendant bears some direct responsibility for the harm, either because the defendant's own product contributed substantially to the harm [citation] or because the defendant participated substantially in creating a harmful combined use of the products [citation]"].)

1.

Defendant's Burden: Factually Devoid

Aurora

argues that it is entitled to summary judgment because Plaintiffs' discovery responses and witness testimony are factually devoid of evidence that Aurora exposed Mr. Moore to an asbestos-containing product or that such a product was a substantial factor in the development of his illness. (Motion at p.9 ["Plaintiffs produced no facts or documents to prove that Mr. Moore was exposed to any asbestos-containing materials from Aurora equipment at any location...Nor could

he provide any such facts at deposition...As discussed in detail above, Mr. Moore recalled external flange gaskets and pipe insulation being replaced by others on Aurora pumps. However, there is no evidence that those flange gaskets contained asbestos, let alone that they were original equipment manufactured or supplied by Aurora or that Aurora was within their chain of distribution. Aurora had no duty to warn about, and cannot be liable for, products manufactured or supplied by someone else."].)

In opposition, Plaintiffs argue that Aurora failed to meet its moving burden because it failed to provide the court with the complete factual record by omitting portions of Mr. Moore's deposition testimony. (Opp. at p. 10 ["Defendant's Motion repeatedly asserts that Plaintiff has no evidence of exposure arising from Aurora pumps while omitting the very testimony in which Mr. Moore describes his repeated work on Aurora pumps and his removal of gasket material from those pumps. Defendant cannot satisfy its burden by simply pretending this testimony does not exist."].) Plaintiffs also argue that they present sufficient evidence that Mr. Moore was regularly exposed to Aurora pumps and that the pumps were designed around asbestos-containing sealing components. (Opp. at p.15 ["Aurora did not merely manufacture pumps and walk away. Mr. Franklin admitted that Aurora routinely maintained asbestos-containing gaskets and packing as standard inventory, sold asbestos-containing replacement gaskets and packing, and supplied asbestos-containing 'renewal parts' with original pumps sold to its customers. Those renewal parts were provided precisely because Aurora expected that gaskets and packing would require periodic replacement throughout the operational life of its pumps... Mr. Moore's testimony establishes that he performed precisely the work Aurora anticipated. Mr. Moore testified that throughout his career aboard both Navy and commercial vessels, he worked with hundreds of Aurora pumps. He personally removed gasket material from Aurora pump flanges, cleaned those flanges using scrapers and wire brushes, worked alongside mechanics replacing internal gaskets and packing, and breathed the dust generated during those maintenance activities."].) Plaintiffs further argue that "Aurora's own corporate testimony establishes that Aurora designed its pumps around asbestos-containing sealing components, supplied those components, sold asbestos containing replacement and renewal parts, anticipated and intended that those components would be repeatedly removed and replaced throughout the service life of its pumps, authored the maintenance procedures governing that work, and never warned workers of the hazards associated with those foreseeable maintenance activities." (Id.)

In reply, Aurora argues that

Plaintiffs evidence is insufficient to raise a triable issue of fact over

whether Mr. Moore worked on or around an asbestos-containing Aurora product: "Rather than presenting evidence that Mr. Moore actually worked on or around others working on asbestos-containing component parts of a pump for which Aurora is responsible, Plaintiffs rely on generalized evidence that Mr. Moore worked on or around others working on Aurora pumps and some Aurora pumps may have contained asbestos-containing components. However, there is no evidence that Mr. Moore encountered an Aurora pump with asbestos containing components and further that Aurora was responsible for any such component parts." (Reply at p.5.)

i. Analysis

Aurora

moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Moore was exposed to an asbestos-containing product for which Aurora was responsible. Specifically, Aurora argues that Plaintiffs' factually devoid interrogatory responses support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Aurora. (Motion at pp.8-9.) Aurora relies on Plaintiffs' responses to written discovery and Mr. Moore's deposition testimony to support its motion.

When Aurora asked Plaintiffs to "state all

facts upon which [they] base [their] contention that Plaintiff SAMUEL MOORE was EXPOSED to any ASBESTOS-containing product manufactured, sold, or supplied by AURORA PUMP," Plaintiffs responded in relevant part:

"Mr. Samuel Moore

was exposed to Aurora Pump's asbestos-containing products and that exposure caused him to contract asbestos-related lung cancer, a disease which has caused him to go through radiation therapy, follow up appointments and recuperation. Mr. Moore was exposed to asbestos fibers contained in Aurora Pump products for decades while working on ships and in shipyards where Aurora Pump products were present and being repaired and replaced...In summary, Mr. Moore testified that he worked with Aurora brand pumps during his shipyard career. Mr. Moore further testified that he saw people installing and removing Aurora pumps during his time in the shipyards and witnessed people opening up and repairing these Aurora pumps. Mr. Moore also confirmed that he had to remove and scrape out old

gasketing materials from these pumps. Mr. Moore went on to testify that he breathed Aurora dust when removing gasketing materials from Aurora Pumps, confirming that he breathed the dust on multiple occasions. Mr. Samuel Moore testified that worked with and around hundreds of Aurora pumps during his shipyard career, and that he worked around others who were also working with Aurora pumps. Additionally, Mr. Moore testified that he worked with and around people who were disturbing insulation, gasketing and/or packing materials associated with Aurora pumps on hundreds of occasions.

Mr. Moore worked

in shipyards in California during the 1960s and 1970s and was a member of the welder's union. Mr. Moore then worked as a welder for decades, welding on ships and working around various trades including pipe fitters, ship fitters, and laborers. Mr. Moore worked at Todd Shipyards in San Pedro, California as a Union welder at various times between 1968 and 1977. Plaintiff (Samuel Moore) refers you to his attached Social Security Records for the exact times when he worked at this location, but Plaintiff notes that he worked there beginning in the fourth quarter of 1968, worked there for the majority of 1969, and part of 1970, and then intermittently until late 1973, and then almost exclusively between 1974 and 1977. Mr. Moore worked on a variety of civilian ships including those manufactured by American President Lines and Matson. Plaintiff also worked on some military ships. Plaintiff worked with a variety of trades. During years doing welding work, Plaintiff worked around asbestos-containing pumps, including Buffalo pumps. During his time at Bethlehem Steel, Plaintiff recalls working on a variety of ships, including, but not limited to the: PRESIDENT PIERCE; PRESIDENT JEFFERSON; GUAM BEAR; SS CANADA BEAR; SS JAPAN BEAR; SS HONG KONG BEAR; LANE VICTORY; HAWAIIAN BUILDING; BAMMEN; and the SS. CHICAGO.

From about 1965,

Mr. Moore worked aboard all manner of ships, both military and civilian, doing welding work while in the immediate vicinity of numerous trades including machinists and pipe fitters. Throughout his career, Mr. Moore was exposed to asbestos in Aurora Pump equipment. Aurora Pumps were present at Mr. Moore's worksites, particularly on ships and during regular maintenance and/or repairs, asbestos-containing packing and gaskets had to be removed and replaced. The old, friable, crumbling packing and gasket material had to be scraped out, usually with a wire brush. This process created respirable asbestos dust, which Plaintiff and his coworkers inhaled. Workers then installed new asbestos packing and gasket replacement parts, most often supplied by Aurora Pump; and this process caused asbestos fibers to not only become airborne and respirable

but also landed on Mr. Moore's hair, skin and clothing. When a manufacturer's gasket was not available, workers fabricated new gaskets from sheet gasket material which also contained asbestos. The gasket material would be scored and then cut or hammered out, shaped to the right size. This process also created respirable asbestos fibers. Once the repairs to defendant's equipment was complete, the area was swept up. This process created clouds of visible asbestos-containing dust in Plaintiff's work area and Plaintiff inhaled it. When he later removed his clothing or touched his hair while cleaning himself up after work, the asbestos dust was once again disturbed and airborne and Plaintiff inhaled it in yet another exposure. This was throughout Plaintiff's entire career, in the small, unventilated machine spaces of ships. Mr. Moore never received any written or oral warning from defendant regarding the presence of asbestos in its equipment or the hazards associated with exposure to that asbestos.

Aurora knew that the equipment manufactured by them would not function properly without asbestos. Aurora had a duty to warn users about the dangers of asbestos exposure from these parts; especially since defendant knew that users of their products would not realize the danger in using them. Defendant failed to warn workers about the asbestos-components in their products, which when scraped clean, would create asbestos dust. Mr. Moore was exposed to Aurora's asbestos containing products for long periods of time with no protective equipment or warnings as to the dangers of defendant's products."

(Berberglou Decl., Exh. 2 at p. 2; Exh. 3 at pp. 3-5.) The responses also identified Mr. Moore's coworkers and Aurora's own employees as witnesses with knowledge of Plaintiffs' claims. (Id. at p.9.)

Mr. Moore testified at his deposition that he did not know the name of the brand, manufacturer, or supplier responsible for the gaskets or insulation he removed from Aurora brand pumps. (Berberglou Decl., Exh. 6 at 492:24-493:12, 493:22-494:1 ["Q: And you don't know the brand name, manufacturer's name or supplier's name of any of the gaskets that were removed from those flanges, true? A: Yes. Q: And you don't know the brand name, manufacturer's name or supplier's name of any of the insulation that was removed from the connecting pipe or the flange, true? A: Yes. Q: You specifically don't know if Aurora pump supplied any of those gaskets for insulation, correct? A: Yes...Q: Did you see any writing, marks or logos on the sheet identifying the brand or the manufacturer? A: No."].) Mr.

Moore also testified that he did not know the maintenance history of the pumps he worked, did not know where the replacement gaskets and insulation came from, and did not know if the gaskets he removed were Aurora's original gaskets. (Id. at 489:21-23, 492:13-23, 494:16-23.)

Aurora

meets its burden to show that Plaintiffs' discovery responses are devoid of facts supporting their contention that Mr. Moore was exposed to an asbestos-containing product for which it was responsible. Plaintiffs' discovery responses were required to provide a factual basis to show products for which Aurora was responsible were present at Mr. Moore's worksite and that these products contained asbestos. (Turley, *supra*, 18 Cal.App.5th at p. 980, Collin, *supra*, 228 Cal.App.4th at p. 593.)

Here, Plaintiffs' interrogatory responses fail to state the factual basis for their contentions that the component parts, gaskets and insulation, Mr. Moore worked with were Aurora parts and that the parts were asbestos-containing. (Berberglou Decl., Exh. 2 at p. 2; Exh. 3 at pp. 3-5.) Additionally, Mr. Moore testified that he did not know what brands, manufacturers, or suppliers were responsible for the replacement gaskets and insulation he worked with. (Id., Exh. 6 at 492:24-493:12, 493:22-494:1.) The discovery record contains no evidence to support Plaintiffs' claims that the replacement components Mr. Moore installed on Aurora pumps were asbestos-containing or that they were Aurora parts. Thus, the discovery responses and Mr. Moore's testimony are devoid of facts establishing that the components Mr. Moore worked with were manufactured by Aurora as opposed to another manufacturer. The factually devoid responses support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Aurora. The burden shifts to Plaintiffs.

2.

Plaintiffs' Burden

Plaintiffs argue that summary

judgment is not appropriate because Aurora failed to meet its moving burden, that the evidence establishes Aurora designed its products to work around asbestos-containing parts, and that their evidence establishes that Mr. Moore was exposed to asbestos-containing Aurora components.

Plaintiffs first argue that Aurora failed to meet its moving burden because it omitted significant portions of Mr. Moore's deposition testimony. Plaintiffs direct the court's attention to Mr. Moore's testimony that he welded pipe flanges when he worked as welder at Todd Shipyards. (Pearce Decl., Exh. 6, 70:9-71:24.) This work involved scraping off old gasket material with a wire brush, a process that created dust which Mr. Moore breathed in. (Id. ["Q: When you scraped out the old gasketing material or wire brush them out, would that be dusty? A: Yes, it would. Q: And would you breathe the dust? A: Yes."].) Mr. Moore also testified that he recalled working with Aurora brand pumps. (Id. at 84:5-85: ["Q: Let me ask you this way. Do you recall working with a brand of pumps named Aurora, and that's A-U-R-O-R-A? A: Yes, I did...Q:...With regards to this pump, would you have to scrape out the old gasketing materials from time to time? A: Yes...Q: Did you breathe that Aurora dust? A: Yes."].) In addition to removing and replacing old gaskets, Mr. Moore also built new ships and installed new equipment, including new gaskets and packing material. (Id. at 683:19-684:8.) Once the new equipment was installed, Mr. Moore conducted pressure testing and replaced gaskets whenever something leaked. (Id. at 709:6-22 ["Q: And once the line is built, that has to be pressure tested, correct? A: Yes. Q: And you pressure test if for leaks, am I correct? A: Yes. Q: And from time to time, there would be a leak detected, correct? A: Yes. Q: And when that happens, then you got to go in there and replace whatever is leaking, correct? A: Yes. Q: And that would include replacing any gasket materials with the new gasket material in those leaks? A: Yes."].)

Plaintiffs argue that Mr. Moore's deposition testimony, which Aurora omitted from its moving papers, was not factually devoid because Mr. Moore testified that he worked regularly with Aurora pumps, removing and replacing internal gaskets while he worked in close proximity. (PUMF Nos. 1-24.) Plaintiffs argue that even if Mr. Moore could not remember the manufacturers of the replacement gaskets he worked with, he also testified that he worked with new, original gaskets that came with the new pumps installed in new ships. (Opp. at p.10.) However, nothing in Mr. Moore's deposition testimony establishes that the gaskets that came installed with the new Aurora pumps were asbestos-containing. Thus, even if Mr. Moore's testimony shows that he worked closely with original Aurora gaskets and other internal components, the discovery record is devoid of facts establishing that these components contained asbestos. Accordingly, Plaintiffs' discovery responses were factually devoid even considering Mr. Moore's deposition testimony.

Plaintiffs also argue that Aurora designed its pumps around asbestos-containing components and understood that workers would be exposed to those components when they performed maintenance work on those pumps. (Opp. at p.15.) Where a product is intended to be used with an asbestos-containing product for an activity that inevitably releases asbestos fibers, the product's manufacturer owes a duty to warn foreseeable users of the risks of using the product. (Bettencourt v. Hennessy Industries, Inc. (2012) 205 Cal.App.4th 1103, 1122, citing O'Neil, supra, 53 Cal.4th at p.361, Tellez-Cordova v. Campbell-Hausfeld/Scott Fetzer Co. (2004) 129 Cal.App.4th 577, 585.) For example, in Bettencourt, a manufacturer of a brake grinder owed a duty to warn its users of the hazards posed by using the grinder because the sole purpose of the grinder was to grind asbestos-containing brake linings, an activity which would inevitably release asbestos fibers into the air even though the grinder itself contained no asbestos. (Id.)

Here, Plaintiffs direct the court's attention to the deposition testimony of Aurora's corporate representative, Jimmy Franklin, taken in another matter, Millard Fillmore Jackson, et al. v. Alfa Laval, Inc., et al. in the Court of Common Pleas, County of Greenville, State of South Carolina, C/A no. 2012CP2305069. (Pearce Decl., Exh. E.) When asked whether Aurora designed pumps that involved asbestos-containing components that were not interchangeable with asbestos-free alternatives, Mr. Franklin responded that "the design of the pump would not preclude many different materials used as – you know, depending on the application of the pump. However, the design of the pump, you have to take into consideration, for example, gaskets, the thickness and compressibility of that gasket, or else the pump won't operate correctly." (Id. at 38:16-39:4.) Mr. Franklin goes on to testify that before 1980, workers used asbestos-containing gaskets at times because they could withstand high temperatures. (Id. at 39:5-10 ["Q: And the example I think you've given in the past is that there was times before the 1980s where asbestos gaskets were used instead of asbestos-free gaskets to withstand high temperatures. A:Yes."].) Plaintiffs argue that Mr. Franklin acknowledged that "prior to the 1980s, asbestos-containing gaskets were used in high-temperature applications because non-asbestos alternatives were not interchangeable in certain pump designs." (PUMF No.33.) However, Mr. Franklin actually testified that nothing about the pump design precluded the use of any particular material. Rather, the type of gasket used in Aurora pumps depended on the pump design and the intended application of the pump. Although Mr. Franklin agreed that asbestos gaskets were more appropriate for some

applications requiring the gasket to withstand high temperatures, there is no testimony that certain pump designs could only be used with asbestos-containing gaskets. The evidence fails to establish Aurora pumps are intended to be used with asbestos-containing gaskets in a manner that inevitably created asbestos dust because the pumps were intended to be used with both asbestos-containing and non-asbestos containing gaskets. Thus, unlike the brake grinders described in Bettencourt, the pumps here would not inevitably create hazardous conditions through their intended use.

Plaintiffs next argue that they present sufficient evidence to support their claims against Aurora. Plaintiffs direct the court's attention to the deposition testimony of Mr. Franklin, who testified that Aurora supplied spare parts called "renewal parts" to customers, including the Navy, in the 50s and 60s. (Pearce Decl., Exh. E at 46:10-24.) Mr. Franklin testified that Aurora knew that the gaskets and packing on its pumps needed to be regularly replaced, requiring workers to clean old gasket material off the pump. (Id. at 46:25-47:12, 48:22-49:8.) Aurora also knew that workers handling asbestos-containing Aurora gaskets or packing replaced those components around other people. (Id. at 50:12-18 ["Q: In addition to understanding that someone would have to do the work with the asbestos-containing gaskets or packing that were sold by Aurora, Aurora understood that there could be other people that were around the pump when the work was being done. Is that fair? A: Yes."].) Aurora was aware that its own workers assembled pumps that involved asbestos components. (Id. at 50:19-24 ["Q: And in addition to having people that would be doing the work or people that might be around the work that was done, Aurora was aware that its own employees for decades would have to assemble the pumps that involved asbestos components, right? A: That's correct."].) Mr. Franklin also testifies that it was industry standard that the gaskets used in the flange between the pumps and the pipes they were connected to were asbestos-containing. (Id. at 60:3-18 ["Q: sure. The idea that there would be an asbestos-containing gasket between the – the flange of the Aurora pump and the flange of the pipe was not just something that was foreseeable. That's something you needed to have there for the pump to get piped into the system...A: You would need a gasket there. Q: And in terms of the kind of general questions that I asked you earlier about what was standard or typical by the industry to be used before 1984, you would agree with me that – that that gasket would have been asbestos-containing. A: Many times, yes."].)

Plaintiffs' evidence is sufficient

to raise a triable issue of material fact over whether Mr. Moore was exposed to asbestos by the gaskets installed on the new Aurora pumps that Mr. Moore installed in new ships. Mr. Franklin's testimony supports an inference that the gaskets installed on new Aurora pumps were asbestos-containing because it shows that some component used in the pumps was asbestos-containing and that Aurora understood that it was industry standard for the gaskets installed on the pumps to be asbestos-containing. (Pearce Decl., Exh. E at 50:19-24, 60:3-18.) Although there is no direct evidence that the gaskets installed on the new Aurora pumps contained asbestos, Mr. Franklin's testimony is sufficient circumstantial evidence to support a reasonable inference that Mr. Moore was exposed to asbestos by an Aurora pump. (See Lineaweaver, supra, 31 Cal.App.14th at p.1421 [circumstantial evidence is sufficient to support a reasonable inference of exposure to asbestos].)

Plaintiffs meet their burden to present evidence raising a triable issue of material fact over whether Mr. Moore was exposed to asbestos by an Aurora asbestos-containing component. Accordingly, the motion for summary judgment is denied.

C.

Punitive Damages

When

a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. "Although the clear and convincing evidentiary standard is a stringent one, 'it does not impose on a plaintiff the obligation to "prove" a case for punitive damages at summary judgment [or summary adjudication.]' [Citations.] Even so, 'where the plaintiff's ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.' [Citation.]" (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 1158-1159.) For a corporate defendant, the oppression, fraud or malice "must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied " 'if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in "willful and conscious disregard of the rights or safety of others." ' [Citation.]" (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090.) A

plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.Ap.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

Aurora moves for summary adjudication of Plaintiffs’ claim for punitive damages, arguing: “Plaintiffs have failed to identify a single piece of admissible evidence, let alone any clear and convincing evidence, that would establish that Aurora acted with the requisite degree of oppression, malice or fraud necessary to support a punitive damages claim. Allegations and assertions are not evidence.” (Motion at p.14.)

In opposition, Plaintiffs argue that a triable dispute of material fact remains as to whether Defendant acted with malice when it continued manufacturing its vehicles despite knowing the hazards posed by asbestos, arguing “Defendant Aurora Pumps acted with malice by engaging in despicable conduct with a conscious disregard for the safety of others. Again, any assertion that Plaintiff must show that an officer, director, or managing agent took action constituting malice in order to obtain punitive damages, is misplaced. Ratification of an employee’s acts by a corporate officer is only required to prove that an employee’s malicious conduct can be imputed to the corporation. A finding of malice against a corporation is appropriate when the malicious behavior is ‘corporate policy,’ rather than the behavior of a rogue employee whose conduct was unknown to those with management authority. (see, Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167-68.) So long as the offending conduct is authorized by the corporation, that corporation may be liable for punitive damages without any

direct communication with the injured party. (see, Bullock v. Philip Morris USA, Inc. (2008) 159 Cal.App.4th 655, 767-77.) Here, the offending corporate policy was Defendant's failure to warn of the hazards of asbestos despite selling asbestos products and for continuing to sell asbestos products for years after it knew or should have known about the hazards of asbestos." (Opp. at p.19.)

In reply, Aurora reiterates that Plaintiffs lack any admissible evidence to support a claim for punitive damages.

1. Defendant's

Burden: Factually Devoid

Aurora moves for summary adjudication of Plaintiffs' demand for punitive damages on the grounds that Plaintiffs' discovery responses are devoid of facts that Aurora's officers, director, or managing agents engaged in conduct justifying an award of punitive damages. (Motion at p.14.) Aurora relies on Plaintiffs responses to written discovery to support its motion. Plaintiffs' response to the special interrogatory seeking "all facts supporting Plaintiff SAMUEL MOORE's allegation that AURORA PUMP is liable for punitive damages to Plaintiff SAMUEL MOORE" states in relevant part:

"As

to any and all negligence and/or punitive damage allegations, Plaintiffs refer you to the vast pool of medical literature which has existed since the early 1900s with respect to hazards of asbestos, as well as those internal documents relating to Defendant (which information has already been revealed in the course of other cases of which you are aware or have been involved, and which is more than equally available to you.) Without warnings of the dangers of the asbestos contained in their products, even though they knew of those dangers, Defendant failed to warn workers exposed to these materials. Defendant's negligence in exposing people to their products when they have a clear knowledge of the dangers of asbestos is reprehensible. Plaintiffs have no compilation of these medical articles, nor do Plaintiffs have a compilation of your internal documents, and you are respectfully referred to same.

The

following facts establish that propounding defendant demonstrated a

conscientious disregard for the rights and safety of others by knowingly selling harmful asbestos products, and, in addition to knowingly selling these asbestos products, failing to provide warnings to end users such as Samuel Moore as set forth below. Plaintiffs allege that fraud, oppression, and/or malice can be established through both internal documents, and worker's compensation claims, which are already equally available to Defendant and through the medical and/or scientific literature. Despite Defendant's actual knowledge of the hazards of asbestos and its asbestos-containing products, Defendant continued to manufacture and sell its asbestos containing products without warning users of the hazards posed by the normal and intended use of same. Defendant knew what precautions were recommended for use but did not provide its users with information about dust suppression methods. Rather than attempting to protect users from the high risk of injury or death resulting from exposure to its asbestos products, defendant intentionally failed to reveal its knowledge of said risk, and consciously and actively concealed and suppressed said knowledge from members of the general public, with the knowledge of the falsity of said implied representations.

Defendant,

by admitting that the design of their products specifically required the placement of asbestos insulation inside and knowing that when placing metal lagging around said insulation that that lagging may need to be removed, thereby creating asbestos dust contributed willfully and maliciously contributed to Mr. Moore's overall exposure to asbestos through his work over long periods of time. Defendant further provided no safety warnings as to how to handle their asbestos laden products."

(Berberglou Decl., Exh. 2 at p.11.) The response also identified a list of expert witnesses and a list of deposition transcripts, pamphlets, and articles. (Id. at pp.11-14.)

Plaintiffs'

interrogatory responses are devoid of facts supporting the demand for punitive damages because they fail to state the factual basis for their contention that Aurora knew its asbestos-containing products posed a health hazard to workers handling those products. Although the response references medical literature and articles on the occupational health hazards posed by asbestos, there are no facts in the response that show Aurora was aware of these materials and chose to continue selling its products without warnings. Plaintiffs' interrogatory responses are thus devoid of facts supporting their demand for punitive

damages. The responses support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their demand for punitive damages. Aurora meets its initial burden on summary adjudication. The burden shifts to Plaintiffs.

2. Plaintiffs'

Burden

Plaintiffs argue that

Aurora had a corporate policy to sell its products without warnings despite knowing of the hazards of asbestos. As discussed, Plaintiffs presented the deposition testimony of Mr. Franklin, who testified that Aurora was aware that the gaskets and insulation on their pumps needed to be regularly replaced, requiring workers to clean old gasket material off the pump. (Pearce Decl., Exh. 8 at 46:25-47:12, 48:22-49:8.) Mr. Franklin also testified that Aurora knew its workers assembled pumps with asbestos-containing components and that the gaskets used with the pumps were commonly asbestos-containing. (Id. at 50:19-24, 60:3-18.) Mr. Franklin also testified that Aurora never warned end-users or its own workers about the dangers related to asbestos packing or gaskets. (Id. at 91:5-20.) Aurora also never conducted any research or testing into the health hazards of asbestos or the amount of asbestos released into the air. (Id. at 92:20-93:1, 94:9-16.)

Plaintiffs fail to meet

their burden to present affirmative evidence supporting the demand for punitive damages. Even if there is evidence that Aurora knew its asbestos-containing products would be disturbed through foreseeable, regular maintenance, there is no evidence that Aurora knew this work would increase the workers' risk of asbestos-related disease. The evidence that Aurora never issued warnings about asbestos or performed research or testing on the health risks of asbestos likewise fails to show that Aurora knew of the health risks associated with asbestos and continued to sell its products without warnings. Plaintiffs fail to meet their burden on summary adjudication. Accordingly, the motion for summary adjudication is granted.

IV.

Conclusion

Aurora meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Moore was exposed to an

asbestos-containing Aurora product. Plaintiffs meet their burden to submit affirmative evidence supporting their claims against Aurora. Aurora's motion for summary judgment is denied.

Aurora also meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence that it knew of the health risks posed by its asbestos-containing components and continued selling them without warnings. Plaintiffs failed to present affirmative evidence supporting their demand for punitive damages. Aurora's motion for summary adjudication of the demand for punitive damages is granted.

Aurora to give notice.